

Court No. - 39

Case :- WRIT - C No. - 36495 of 2022

Petitioner :- Mustak Ali

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Rajneesh Tripathi

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Chandra Kumar Rai, J.

Sri Baleshwar Chaturvedi, learned counsel has received notices on behalf of the respondent no.2.

The dispute is pertaining to computation of electricity bill and the notice which allegedly has been issued against the petitioner.

We, therefore, relegate the petitioner to approach the Executive Engineer, Electricity Distribution Division Budaun by invoking the provisions of Clause 6.5 of the Electricity Supply Code, 2005.

In case, such a representation is filed within a period of three weeks along with a copy of this order, the competent authority shall be under obligation to take an expeditious decision in accordance with law by passing a reasoned and speaking order, preferably, within a period of four weeks from the date of receipt of copy of this order.

For a period of two months from today or till a fresh decision is taken by the respondent no.2, whichever is earlier, no coercive measure shall be taken against the petitioner. However, in case, the petitioner fails to file the representation as directed above, it would be open for the respondent to proceed in accordance with law.

The writ petition is **disposed of**.

Order Date :- 12.12.2022

PS*